

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 24-14

AIRBOSS DEFENSE GROUP, LLC,

COMPLAINANT,

v.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC.,
MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN
SHIPPING COMPANY (USA) INC., as agent for Mediterranean Shipping Company
S.A., and TOTAL TERMINALS INTERNATIONAL,

RESPONDENTS.

**AIRBOSS DEFENSE GROUP, LLC’S OBJECTIONS IN OPPOSITION TO
FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC.’S
MOTION TO DISMISS, OR IN THE ALTERNATIVE, MOTION FOR
SUMMARY DECISION**

I.

OBJECTIONS

A. Complainant objects to Exhibit “A” to Respondent’s Notice of Errata to Motion to Dismiss, and to Respondent’s conclusions and footnote on page 3 of Respondent’s Motion to Dismiss the Complaint, or in the alternative, Motion for Summary Decision (the “Motion”), because Respondent filed the above in violation of paragraph 17 of the March 22, 2024, Initial Order of ALJ Linda S. Harris Crovella (the “Initial Order”), which states in relevant part:

A party moving for summary decision **must include in a separate document a statement of material facts as to which there is no genuine dispute**. This document must set forth in separately numbered paragraphs a concise statement of each material fact as to which the movant contends there is no genuine dispute. Each paragraph must be limited as nearly as practicable to a single factual proposition. Each factual proposition must be followed by an exact citation to evidence that the party contends will establish the fact or demonstrate that it is uncontroverted; i.e., a page number in the Appendix. *See* 46 C.F.R. § 502.70(a). The party filing Proposed Findings of Fact must provide an electronic copy of the Proposed Findings of Fact in a word-processing format to all parties and to the Office of Administrative Law Judges. (emphasis added).

- B. Respondent failed to file the mandatory statement of material facts.
- C. Respondent's Exhibit A lacks authentication.
- D. Respondent's Exhibit A is unsigned and undated.
- E. Respondent's Exhibit A is a disputed settlement agreement
- F. Respondent's Exhibit A is inadmissible hearsay.
- G. Complainant objects to the argument on page 3 of the Motion:

Each of the alleged violations of the Shipping Act identified by ADG in its Complaint arise out of or relate to the transactions giving rise to the Freight Charges and Shoreside Charges," and "Accordingly, by its

express terms, the Release applies to the claims asserted against FTN in this proceeding, and the Complaint should be dismissed.

The above are not facts but conclusory, speculative, and argumentative statements.

H. Complainant objects to the argument on page 5 of the Motion:

In this case, the broad and inclusive release language in the Release unquestionably demonstrates that the parties' intentions in the Release were to release and waive any and all possible claims related to the Goods, in any forum, whether those claims were pending at the time of the execution of the Release or may have been brought in the future. See Exhibit 1, p. 3. The Release uses the broadest possible language to encompass all disputes, which certainly would include the claims asserted by ADG in this proceeding. All of the alleged violations of the Shipping Act in the Complaint relate to actions taken and/or charges assessed by FTN to ADG which are encompassed within the scope of the claims released therein. If the parties had intended to carve out an exception for claims brought pursuant to the Shipping Act, they certainly could have done so. Instead, the language used in the Release clearly conveys an intent by both parties to bring finality to their dispute, subject to their respective obligations under the Release.

The above are not facts but conclusory, speculative, and argumentative statements.

I. Complainant objects to the argument on page 6 of the Motion:

The Release entered into by ADG and FTN contained a similar provision and also evinced this same intent to permanently end the prospect of litigation between FTN and ADG. Accordingly, as all claims brought by ADG in this case against FTN have already been released pursuant to the Release, the Complaint should be dismissed in its entirety with prejudice as to FTN.

The above are not facts but conclusory, speculative, and argumentative statements.

Dated: July 12, 2024

Respectfully submitted,

By: /s/ Cameron W. Roberts
Cameron W. Roberts, Esq.
cwr@tradeandcargo.com
Andrew D. Kehagiaras, Esq.
adk@tradeandcargo.com

Roberts & Kehagiaras LLP
100 West Broadway, Suite 660
Long Beach, CA 90802
Tel. (310) 642-9800
Attorneys for complainant
AirBoss Defense Group, LLC

CERTIFICATE OF SERVICE

I certify that on the 12th day of July 2024, I served the above **AIRBOSS DEFENSE GROUP, LLC'S OBJECTIONS IN OPPOSITION TO FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC.'S MOTION TO DISMISS, OR IN THE ALTERNATIVE, MOTION FOR SUMMARY DECISION** on the parties listed below by email.

Wayne R. Rohde, Esq.
COZEN O'CONNOR
1200 19th Street NW
Washington, DC 20036
Office: (202) 463-2507
Fax: (202) 640-5912
Email: wrohde@cozen.com

Attorney for Respondent, MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN SHIPPING COMPANY (USA) INC., as agent for Mediterranean Shipping Company S.A.

Vincent M. DeOrchis, Esq.
Kaspar Kielland, Esq.
MONTGOMERY McCracken Walker & Rhoads LLP
427 Madison Avenue, 24th Floor
New York, New York 10022
Tel: (212) 201-1931
Fax: (212) 867-9500
Emails: kkielland@mmwr.com, vdeorchis@mmwr.com

Attorneys for Respondent, MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN SHIPPING COMPANY (USA) INC., as agent for Mediterranean Shipping Company S.A.

David K Monroe, Esq.
Rachel E. Amster, Esq.
Michael J. Smith, Esq.
GKG LAW, P.C.
The Foundry Building
1055 Thomas Jefferson Street NW, Suite 620
Washington, DC 20007
Tel: (202) 342-5235
Fax: (202) 342-5299
Emails: dmonroe@gkglaw.com, ramster@gkglaw.com, msmith@gkglaw.com
Attorney for Respondent, FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC.

Jeremy Bylund, Esq.
Joseph N. Akrotirianakis, Esq.
Martha Banner Banks, Esq.
KING & SPALDING LLP
1700 Pennsylvania Avenue, NW, Suite 900
Washington, D.C. 20006
Office: (202) 626-5455
Email: JBylund@KSLAW.com, jakro@kslaw.com, bbanks@kslaw.com
Attorney for Respondent, TOTAL TERMINALS INTERNATIONAL

Dated: July 12, 2024



Ana Cruz